

**SYNTHETIC COURT DOCUMENT — FICTIONAL CASE — NOT AN
ACTUAL FILING**

UNITED STATES DISTRICT COURT FOR THE WESTERN DISTRICT OF VIRGINIA

Civil Action No. SYN-WDVA-25-CV-0733

Retired Captain Rowan Pike Use-of-Force Expert Report and Deposition Excerpts

Report dated November 5, 2025; filed with Rusk's November 21, 2025 motion.

Retention and materials

Officer Nolan Rusk retained me to evaluate his force decision during the welfare encounter with Mara Ellison. I served in patrol, supervision, conducted-energy-weapon instruction, and force review before retirement. I am compensated hourly regardless of the result.

I considered dispatch materials, reports, both body-camera exports, the device log, photographs, medical evidence, officer and civilian testimony, department policy, and expert reports produced before my deadline. My principal opinion assesses Rusk's stated perception that Ellison twisted, struck his forearm, and moved a hand toward his duty belt.

That factual predicate is disputed. The cameras do not reliably show the relevant hands during the restricted interval. I do not offer video-authentication expertise or claim the media prove a strike or reach. I give separate opinions under Rusk's account and under Ellison's assumed account so the report does not hide a credibility choice inside professional terminology.

Pike report — welfare contact and initial control

Officers responding to a mental-health welfare call may encounter rapid changes and cannot assume the absence of a dispatched weapon report eliminates all risk. They also should use time, communication, and distance when feasible. At first contact, Ellison was seated, empty-handed, distressed, and not suspected of a completed crime.

Rusk's wrist grasp at approximately 19:53:02 began a seizure and physical control. His report says he chose wrist control when verbal requests did not produce cooperation and he believed Ellison might move toward the stairs. The open railing was a legitimate positioning concern, though the record does not show she attempted flight before contact.

In my opinion, taking controlled hold of a wrist can be within accepted practice for a welfare subject who will not cooperate with assessment, depending on touch, warning, positioning, and perceived risk. That general opinion does not resolve the later escalation. Once Ellison moved, the nature of the movement and danger became critical. A painful recoil without threat calls for a different response from a strike and deliberate reach toward police equipment.

Pike report — analysis under Rusk's stated perception

Assuming Rusk reasonably perceived an active twist, a forearm strike, and a movement toward his duty belt, prompt force to stop access and obtain control would serve a substantial safety need. Officers carry weapons and tools in the belt area. Close-range interference can reduce reaction time, and waiting to confirm which item a hand seeks can be hazardous.

On that version, a single drive-stun cycle during the takedown was a brief escalation tied to the asserted equipment-access risk. The device was used in contact mode, not by firing probes, and the activation ended after one five-second cycle. No further cycle or strike followed once officers moved toward handcuffing. Those limitations support a proportional-response opinion if the threat premise is accepted.

I do not state that an alleged belt movement justifies unlimited force. The analysis depends on distance, direction, competing hand control, officer numbers, and cessation when the danger ends. Nor do I state that the camera corroborates the predicate. My defense-favorable opinion rests on Rusk's testimony and report, subject to the trier of fact's treatment of those sources.

Pike report — analysis under Ellison's assumed facts

Counsel also asked me to assume that Ellison was unarmed and distressed, pulled or recoiled from a painful wrist grasp, did not strike Rusk, did not grab or reach toward equipment, did not flee, and posed no immediate safety danger. Those assumptions remove the principal threat facts on which my proportionality opinion depends.

Under that version, some hands-on control might still be reasonable to complete a welfare seizure or prevent movement near the stairs. But a five-second pain-compliance drive stun during a forcible takedown would require a stronger justification than mere noncompliance or pulling. If there was time for adjusted wrist control, assistance from Vega, clearer explanation, or repositioning, those options would weigh against immediate device use.

I therefore do not give the opinion that the cycle was justified even on Ellison's account. I disagree with portions of Dr. North's policy emphasis, but our conditional results converge on a basic point: deleting the strike, equipment reach, and immediate threat materially changes the practices assessment. That concession is not a finding that Ellison's version occurred.

Pike report — camera and audio boundaries

I viewed both camera files at ordinary and reduced speeds. They display motion, commands, a close struggle, device activation, and the transition to handcuffing. They do not continuously display Ellison's hands relative to Rusk's forearm and belt from 19:53:08 through 19:53:22. I cannot point to a frame that conclusively depicts the claimed strike or reach.

“Stop pulling” is consistent with Rusk's perception of resistance and with Ellison's admission that she pulled from the grip. Her statement “you're hurting me” records distress. Neither phrase resolves the additional acts. An impact-like sound cannot be assigned to a forearm, railing, shoe, equipment, or camera housing with sufficient confidence for my opinion.

I have not used artificial intelligence, generated frames, skeletal tracking, or interpolation to create a hand path. I defer to Professor Crane on technical methods, but I agree with the narrow conclusion that an authentic file can be incomplete. My force opinion cannot be converted into proof of its premise merely because the video does not disprove Rusk.

Pike report — device mode, duration, and reassessment

The device download identifies one drive-stun activation lasting approximately five seconds. In drive-stun mode, the contacts produce localized pain intended to assist compliance; they generally do not create the same neuromuscular effect as separated probes. The pain and injury potential remain part of proportionality analysis.

Training directs an officer to articulate the need for activation, limit duration, and reassess before repeating it. Rusk connected the activation to his claimed strike and belt reach. The single-cycle duration and absence of repeat force favor his practices position under that factual account. They do not independently verify the asserted threat.

When the image clears at about 19:53:22, the activation has ended. Ellison is handcuffed by about 19:53:37 and receives medical assessment. The post-cycle restraint and care are relevant to the scope of force but cannot make an unjustified initiation reasonable. Conversely, the resulting wrist abrasion, two superficial contact burns, shoulder strain, and absence of fracture describe outcome without deciding whether the initial safety need existed.

Pike deposition excerpt — resistance terminology

Q. Is every act labeled resistance an immediate threat?

A. No. Resistance describes a range. Failure to answer, stiffening, pulling, active striking, and weapon access are operationally different. Officers must describe the conduct and resulting risk rather than rely only on a category.

Q. If Ellison merely pulled because her wrist hurt, is that enough for your opinion?

A. Not for the opinion that the drive stun was proportionate to an equipment-access danger. Some control may have been warranted, but the justification for that particular escalation would be weaker and would require separate analysis.

Q. Are you asking the court to believe Rusk instead of Ellison?

A. No. I was asked what accepted practices permit if Rusk's stated perceptions are true. I have identified that assumption each time. I also state what changes if the plaintiff-favorable version governs. The factfinder resolves the historical dispute; an expert should not obscure it by presenting a disputed premise as an established fact.

Q. Does Vega corroborate a belt reach?

A. She does not. Her testimony is that she lacked a reliable view of the hands. Her approach to assist shows a close encounter, not what particular movement she saw.

Pike report — conclusions and limitations

My conclusions are as follows. Wrist control can be a reasonable step in a welfare encounter, depending on execution and perceived need. If Rusk reasonably perceived an active forearm strike and a hand moving toward his duty belt, one drive-stun cycle during a takedown was a limited and proportionate means to interrupt the asserted danger. Ending after one cycle and arranging medical care are consistent with reassessment.

The predicate is not conclusively recorded. If Ellison's version supplies the facts—pain recoil and pulling without strike, reach, flight, or immediate threat—my equipment-access rationale does not apply, and I do not opine that the same device use was justified. The difference cannot be bridged by saying simply that she resisted.

I offer no ultimate conclusion about Fourth Amendment liability, clearly established law, summary-judgment sufficiency, or collateral-order jurisdiction. Internal policy and accepted practice inform but do not control those legal questions. Nothing in this report reconstructs the obstructed fourteen seconds, assesses credibility, or treats lack of a conclusive video as affirmative evidence for the defense.